



POLICE DEPARTMENT

December 20, 2010

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Larry Lopez
Tax Registry No. 896498
42 Precinct
Disciplinary Case No. 84465/08

The above-named member of the Department appeared before me on July 28, 2010 and November 10, 2010, charged with the following:

1. Said Sergeant Larry Lopez, assigned to the 42nd Precinct, on or about and between February 1, 2007, and July 11, 2007, while on-duty, did engage in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Sergeant engaged in a pattern or course of sexual harassment of a female member of the service under his supervision, including sexual propositions, discourteous or disrespectful sexual remarks, inappropriate touching, and spitting of water at said individual, having the effect of unreasonably interfering with said individual's work performance or creating an intimidating, hostile, or offensive work environment.

P.G. 203-10, Page 1, Paragraph 5 – PERFORMANCE ON DUTY –
PROHIBITED CONDUCT –
GENERAL REGULATIONS

P.G. 205-36, Page 2 – EMPLOYMENT DISCRIMINATION –
PERSONNEL MATTERS

2. Said Sergeant Larry Lopez, assigned to the 42nd Precinct, on or about March 2007, did engage in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Sergeant wrongfully retaliated against a female member of the service under his supervision, to wit, having had his sexual propositions or advances rejected by said individual, wrongfully posted a sign inside the 42nd Precinct stationhouse which directed other supervisors not to issue any excusals or approve any leave requests for said individual without said Sergeant's permission.

P G 203-10, Page 1, Paragraph 5 – PERFORMANCE ON DUTY –
PROHIBITED CONDUCT –
GENERAL REGULATIONS

P G 205-36, Page 3 – EMPLOYMENT DISCRIMINATION –
PERSONNEL MATTERS

The Department was represented by David Green, Esq , Department Advocate's Office, and the Respondent was represented by Andrew Quinn, Esq

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Police Officers Kerverlin Compres, Feliciano Morales, and Cleo Carter as witnesses.

Police Officer Kerverlin Compres

Compres has worked for the Department for about eight years. She has been assigned to the 42, 48 and 50 Precincts, as well as Patrol Borough Bronx. She was at the 42 Precinct from January 2003 until the summer of 2007. While there, she did patrol and

she worked in the School Unit. She also had an inside position handling UF-250s¹. The first time she worked under the supervision of the Respondent was when she was assigned to patrol squad B-2. He was her direct supervisor and she did not know how long this lasted.

Compres testified that there came a time that she was assigned to the School Unit. Her first supervisor there was Sergeant Wick. At some point, from the beginning of 2007 to about mid-year, June 2007, the Respondent was her supervisor. There were about five people, sergeants and police officers, she said, in the School Unit. There were no lieutenants. The duties involved dealing with juveniles, doing truant reports, and conducting school visits.

According to Compres, the Respondent sometimes assigned her as his driver while they were in the School Unit. This occurred at least once a month. Her tour there was 0800 to 1635.

During the period of February 2007 to July 2007, Compres testified, the Respondent would constantly invite her over to his house. "He would pinch my arm constantly to the point he would bruise me. They would notice at home that there were bruises on my arm."

On the days when she was his driver she would be with him "approximately" the whole tour, eight hours. She said during the tour they would discuss a range of subjects, "anything from the weather, you know, change of tour, anything like that, lost time, if I need a day off."

She further testified, "He told me on two occasions that he wanted to give me a massage naked and he told me that he never invited anybody to his house and that if I

¹ Stop, Question and Frisk Report Worksheets

went I would be in his bed and it was special and nobody could get in his bed like that "

This conversation occurred, "like twice "

Compres said she told him she was not interested each time the issue came up

She said, "Well, things continued but he kept inviting me over "

Compres recalled that she had been to the Respondent's residence on one occasion but she did not remember the date She said he lives "downtown " They had a conversation about the Mitchell-Lama program which she had not heard of He said he had a very nice apartment with a nice view She said at that time they "used to get along" and "we didn't have a problem " She said they socialized at "precinct functions, which wasn't all the time " She denied having a personal or romantic relationship with the Respondent, ever She denied going over to the Respondent's apartment for any purpose other than to discuss the Mitchell-Lama program and to discuss decorating She acknowledged that when she was at the Respondent's apartment, no one else was there At the time she visited his apartment, Compres said, she was married but separated

Compres got married in August 2001 She and her husband had problems, separated once and then got back together, then separated again She said it had to do with infidelity on her husband's part Compres acknowledged that the first time she was separated, she discussed the matter with the Respondent and told him she needed a tour change She did not discuss she said, the details She said she may have also discussed the matter with Officer Sanchez, who had had similar problems She did not recall taking any E-days² during that time period because she only took them when extremely necessary She was not sure if she took any days off for child-care issues during this period of time

² Emergency leave days

During the period of February through July 2007, Compres did request a change of tour because she had to take her children to school and as a result she needed to come in a half-an-hour later. She spoke to the Respondent about this. She said this conversation "probably" occurred in the Youth Room and that "probably" other co-workers were there.

Compres told him she needed a tour change. "I told him I needed a tour change because I had to take my kids to school. I was separated, I didn't have any help, so I told him if it was okay with him for me to come in at 8:30 instead of 8:00. He told me to go see Lieutenant Arguinzi." She added that the Respondent told her the change was okay with him but told her to speak with Arguinzi, who was the administrative lieutenant.

She spoke to Arguinzi, who told her that the Respondent had told him that he had never said it was okay with him. She then went to her PBA³ delegate. She next went to the commanding officer (CO), who approved her 8:30 start time.

Compres said that the Respondent had a nickname around the precinct and that co-workers would call him "Larry Love." She said she heard others call him Larry Love but she testified that he called himself "LL." She testified, "He would say, 'You know you want some LL.'" She testified that he said this to her on more than one occasion and that this occurred at work. She said she thought the Respondent was out of his mind. She said she would answer him, "No, I'm not interested."

Compres said her partner at this time was Officer Danclar. She had a partner named Felicia Morales but not in the School Unit. She had worked with Morales while on patrol. Compres testified that on one occasion, when the Respondent invited her to his

³ Patrolmen's Benevolent Association

house and she failed to show up, the Respondent told Morales that she (Compres) would pay for it (not showing up at his house)

After saying that the Respondent did not say anything of a sexual nature to her regarding Morales, she said he did, one time, say that they could go over and have a threesome. This conversation occurred, she said, in front of the precinct. Compres did not recall the Respondent saying anything about smacking her.

At some point in February or March 2007, there was an incident at the water fountain inside the 42 Precinct. Compres claimed that the Respondent spit water in her face and hair. Explaining the situation, Compres testified, "Well, he told me that -- you know, I got upset and I told him why he was spitting in my face. I had saliva all over. He said, you know you'd like for me to cum all over you like that." She said she understood that to mean like he ejaculated on her. This had not happened before. Compres said Officer Carter was present when this occurred.

On June 27, 2007, there was a blackout. Regarding that day, Compres said

Well, when I was leaving, he started calling me by my first name, and since I had already established that we only had a strictly business relationship, he was only to call me by my last name, I kept walking. When he then called me by Officer Compres, I respond, and he said something about me going to his house and that if the CO wanted us to stay because there was a blackout, but if I went to his house, you know, he would pretend he didn't see me. We were going back and forth arguing around the corner from the precinct.

No one else was present when this occurred and she said she was not interested. She said she went to her car and then contacted her PBA delegate. She did not recall if she discussed the Respondent with any of her co-workers. She did say that she spoke to

her PBA delegate before making an EEO⁴ complaint and he told her speak to her ICO⁵

On March 8, 2007, she was assigned to a foot post. She had come into the precinct for an 8 30 start and the Respondent told her she was late and that Vega was too. She said he used that as an "excuse" to put her on a foot post. Compres denied being late that day.

At some point in time, Compres saw signs "all over the precinct about her. They were, she said, "on the wall, on the glass of the Youth Room, on the door where you go to the ICO, the ICO's and the admin lieutenant's office, in the Muster Room, by the desk, everywhere."

The signs said, "No E-days, lost or vacation time off for Officer Compres without my authorization," and they bore Respondent's name. She did not know in advance that these signs were going to be posted. She spoke to the Respondent after they were posted and told him that he was retaliating against her for rejecting his sexual advances. She did not recall him saying anything. She said he just laughed.

Compres had never seen signs like this posted before. She said that she did not go "boss shopping" if she was rejected for leave time. She said he invited her to go to his residence or out on a date every time she drove him, which was at least "more than five times. She said she probably used different words but she told him she was not interested.

She did not think he did this in front of anyone else. She said these repeated overtures affected her work. Compres testified, 'I hated being at work, I just wanted him to leave me alone. I just wanted it to be strictly business. I was a good worker, always

⁴ Equal Employment Opportunity

⁵ Integrity control officer

been a hard worker, doing my job. It was making it hostile for me. I hated it. I didn't want to come into work anymore. I wanted to quit." With regard to her family life, she stated, "Well, my children would see me cry and then they would ask me what's wrong. They were too young to understand, so I wouldn't reply."

In reference to her earlier testimony about bruising to her body, she said they were on her arm and on occasion on her right buttock area. The marks, she said, were caused by his long nails when he would pinch her. She did not seek medical attention, saying, "I didn't know what to do. I was humiliated. I was afraid of the retaliation. I just thought if I told him to stop he would."

She said people questioned her about the marks but she did not know what to say. She hired an attorney, Eric Sanders and filed a lawsuit naming the Respondent. She did not know the current status of that litigation, which involves the same issues before this Court. She spoke to Sanders about four months ago. She retained the attorney months after she filed her complaints with the Department. She believed she filed her complaint with the Department in June or July 2007.

She had always had a friendly business relationship with the Respondent. She never went out with him socially or in a one-to-one fashion.

On cross-examination, Compres denied that she retained her attorney in June or July 2007. She said that her family problems in January lasted a few months. She said she had learned that her husband was not being faithful before and that is why they split the first time. She said in 2007, it was a different issue and they decided to separate. She agreed that at one point she was placed on restricted duty and was given an examination at the [REDACTED] Unit. Compres testified that it was due to the stresses of

this case but then conceded that it was before January 2007 and "that was a different issue " She did not remember if it was related to her marital issues

When asked, "You don't remember why you were sent to [REDACTED]
[REDACTED]" Compres responded, 'I don't remember the whole situation That was years before 2007 '

Compres conceded that as a result of marital problems in 2005 or 2006 she was sent to the [REDACTED] Unit. She said she separated from her husband in 2007 for issues other than infidelity She denied the separation made it difficult to come to work but she stated that she needed a change of tour to make it easier to take her children to school She said that her performance on the job had nothing to do with her marital status as she separated her personal life from work

Compres agreed that she had worked for the Respondent before her assignment to the School Unit She agreed that, at some point, she had been his driver approximately as far back as 2004 When asked if she was his steady driver she replied, "It's possible I was at one point " When asked, "Don't you remember whether or not you were [the Respondent's] driver?" Compres replied, "I don't remember that part I can't remember it. You know, I know I drove him "

She stated she did not have a problem with the Respondent then She was then asked, ' You were his steady driver for a period of months long before these allegations ever came up, correct, in 2007?" Compres replied, "That was way before " She then agreed that he did nothing improper at that point in time

Compres agreed that she did in fact go to the Respondent's residence to look at the apartment and discuss the Mitchell-Lama program She stayed about an hour

Nothing improper occurred at that time. She did not remember when this happened.

She could not recall how long she had been the Respondent's driver before February 2007, saying, "I couldn't answer that because I was not assigned to the School Unit and he was not my immediate supervisor so I am not sure."

She returned to the School Unit at the beginning of 2007. She agreed that it was on her return to the School Unit that the Respondent started the sexually harassing behavior and pinching her in the arm. She agreed that they had had a friendly relationship. Compres explained that, at the beginning, it did not seem to be unusual because they used to get along before. She denied that their conversations included joking around. She denied that most of the members of the School Unit are very friendly. She denied that there was a lot of friendly banter among them saying, "Not with me, I don't get along with some of them. We're not friends."

She denied joking with the Respondent. Compres agreed that the Respondent's errant behavior started in about February 2007, and she indicated that before then they "got along." She said her visit to his apartment was "years before." She denied that they were friends and said that they were acquaintances.

When asked about the pinching, she said that the Respondent seemed to believe that she liked it. This pinching happened "several" times. Her reaction, she testified, was to tell him to stop, saying, "You're hurting me, you're bruising me, they are asking me at home." She said he would laugh when he pinched her. He did not make sexual remarks when doing that.

Compres testified that the sexual comments were not made in front of anyone else and that at least one was made in the car. That statement involved him offering to give

her a massage but that she had to be naked. She said she responded that she was not interested.

She acknowledged that between February and July 2007, she requested days off from the Respondent. When asked, "In fact, there were times when he denied you those days off saying that he couldn't afford you to leave because he had manning and staff issues, correct?" Compres answered

I can't answer yes or no. On one occasion I asked him, I needed the day off. When we were in front of the station house and told me if I wanted the day off I had to go to his house and he snatched the 28⁶ and he said that if you want the day off you know where to get it. And that was in front of the precinct. I don't remember if I had the day off, but that's what he did.

Compres did not recall if other sergeants signed UF-28s for her. She did not recall going to Sergeant Diaz after the Respondent denied her leave request, saying that she does not go "boss shopping." She stated, "If somebody denies me, it's denied. But if somebody is not available to sign the 28, then I go to the desk officer or I go to the admin lieutenant." She again asserted that she did not go to Diaz after the Respondent denied her leave.

She agreed that the sign about her was posted prominently. She did not know who posted the signs but assumed the Respondent did. When Compres spoke to the Respondent, he did not say why he posted the sign. She said he was laughing. She did not recall taking E-days between February and July 2007. She said she and Vega were assigned a foot post on the day they were supposedly late. She agreed she came in after 8:00 but believed she was approved for an 8:30 start of tour.

She agreed that the Respondent did not have authority to make a tour change but

⁶ Leave of Absence Report, commonly referred to as UF-28

she asserted that he had said he had no problem and sent her to the administrative lieutenant. Then, she testified, he lied about it and said that he never said it was okay with him.

Compres said she knew her tour had been changed to 8 30 but she did not recall who in authority told her about it. She denied that on that day she was told about an ongoing evacuation at one of the schools.

She did not recall an instance in which the Respondent referred to himself as "LL" in front of other people. She agreed that "Larry Love" was a name given to him by other people. She was not aware of the lyrics to any song that reference Larry Love nor did she know who gave him the name. She agreed this was a sort of nickname given to the Respondent by members of the command.

Compres agreed that there was a blackout on June 27, 2007, and she remembered an incident from that day. She was leaving the precinct heading to her car in civilian clothes. She agreed that the Respondent told her that she could not leave the command because the CO had ordered her tour held over to address the needs of the precinct as it related to the blackout.

Compres said she did not leave the command but stood by her vehicle because the Respondent had gotten her upset. She said she did not want to say something she might regret. "So I stood in my car to try to avoid a confrontation with him." She agreed that she was not in the stationhouse despite being told that her tour was held over.

She denied that her delegate told her to come back into the stationhouse and said the delegate told her to stand by in the car. She did not receive a command discipline for that date but acknowledged that it was possible that she went to make an EEO complaint.

a week later

With regard to the water fountain incident, she was at the water fountain in the TS area. She was in civilian clothes and ready to leave. The Respondent, she said, told her to hurry up and leave. She did not remember the day of this incident but it might have been before the blackout.

Compres said that when the Respondent told her about coming all over her it was in a low voice. She said she did not remember him whispering. When confronted with her verified complaint in the civil action in which she said that the Respondent whispered in her ear, Compres said it was possible. She then testified, "He did whisper, but I don't remember everything exactly that he did." She said she remembered Carter saying, "Wow, that is nasty, aren't you going to do something about that?"

When asked if she took two E-days during her tours in March 2007, Compres said she did not recall taking any. With regard to the comment about the threesome, she said it occurred in front of the precinct but that she was not sure, nor did she remember, if Morales was present at the time.

Going back to the water fountain incident, she denied throwing water from a water bottle on the Respondent before that. She denied ever spraying water on the Respondent. This was the only time the Respondent sprayed water on her.

Police Officer Feliciano Morales

Morales has been a member of the service for eight years. During that time, she has been assigned to the 42 Precinct, the Viper Unit and the Chief of Patrol's office. While she was at the 42 Precinct, Compres was her partner while they were in patrol.

squad B-2 They became friendly and socialized off the job Morales also got to know Compres' family

Morales knew that Compres had marital problems and recalled one day that Compres came storming into work, crying Compres had had an altercation with her husband Morales said that Compres confided in her about a little bit of it Morales said Compres' marital problems did not really affect her work nor did it "really" cause her to take time off from work

While at the 42 Precinct, Morales also knew the Respondent briefly, as she went on maternity leave He had been the squad sergeant for B-2 At that time, Compres sometimes served as the Respondent's driver When Morales returned from maternity leave in November/December 2005, Compres had been the Respondent's driver for "a while ' Morales said that Compres mentioned some things about the Respondent asking her out "and stuff like that "

In describing what Compres told her about the Respondent's conduct while she had been on maternity leave, Morales stated, "That he was constantly asking her out and, you know, -- invited her to his house and things like that Things of that nature Basically, she had said that he invited her a couple of times to the house and then when I got back, then he kind of tried to invite both of us to go to his house "

When asked how this happened, Morales testified, "Just asking, you know, oh, you guys want to hang out one day? We could go out, have a couple of drinks and hang out " Morales said that she never went to the Respondent's home Morales said that she and Compres discussed hanging out with the Respondent but she (Morales) never did

Morales testified that Compres told her that she would say no to the Respondent

or laugh it off. Explaining further, Morales stated "It was basically like she would say no, but not in a roundabout way saying that she wasn't going." Compres did mention a threesome to her. Compres told her that the Respondent, "implied for me and her to have a threesome with him at his apartment." It was not said to her, and Morales did not know how he said it to Compres.

She said she did overhear the Respondent ask Compres out, several times. She said she heard this outside the precinct or in the Muster Room or the School/Youth Office. When asked what words he would use Morales replied, "Well, basically he always said, you guys should come and hang out with us or tell your friends to come hang out with me."

Morales explained that "hang out" means to go out. She had heard the Respondent refer to himself as "LL." She recalled that one time the Respondent said something to Compres in the nature of "I know you want some of LL." Compres, she said, just laughed it off.

Morales testified that she heard the Respondent refer to himself as "LL" on more than one occasion but she did not recall him referring to himself as "Larry Love." After she left the 42 Precinct, in 2007, the Respondent called her. He told her that her friend, Compres, was acting crazy. He said that she seemed stressed. She did not really recall him saying that he was upset with her, just that she was acting crazy.

When asked about whether or not Compres had made plans with him and broken them, Morales testified, "The conversation with the plans, it was we were supposed to meet up with him somewhere and basically nobody showed. I didn't show. She didn't show so he was upset that nobody showed." With regard to Compres, at that time, the

Respondent told Morales that her friend was really messed up for not showing. When asked if the Respondent said he would do anything to Compres for not showing up, Morales stated

I told her myself. He didn't really basically say that, but I told her, listen, you better watch your back. You better -- you know, he was very upset that we didn't show up and whatever, and basically he had a thing for -- for -- I don't know getting back at cops for not showing up to places.

Morales said she did not socialize with the Respondent and she never went out with him and Compres. Morales stated that Compres told her that the Respondent had pinched her and that he had spit water in her face. She did not recall the date but it was in 2007. Morales said that Compres had called her and told her about the spitting incident and said that she did not know why he would do "stupid shit" like that to her.

Going back to the telephone call with the Respondent regarding their failure to show up, Morales testified

He was upset that she didn't show up to the house. Basically, we were supposed to show up. We didn't show. It wasn't even to his house. The thing was this, we were supposed to show up at a bar and then from the bar we would go wherever. He made a comment about us not showing up and then he was very upset that we didn't show up and he made a comment about, you know, she's really fucked up that she didn't show up and you know, she better start watching herself, in that roundabout way.

Compres never told her about the Respondent inviting Compres over to his house to have sex in his bedroom and not on the sofa. She said that the Respondent invited her to his house to see what he did to his apartment. As far as she knew, there was only a professional relationship between the Respondent and Compres.

On cross-examination, Morales indicated that while she was at the 42 Precinct she

was not assigned to the School Unit. She did not work with Compres on a regular basis as Compres was in the School Unit and she was on patrol. She did see how Compres, the Respondent and other members of the School Unit interacted and she said it was "supervisors and their cops." She did not see a lot of banter.

Morales received a call from Compres when the Respondent spit water at her and she was very upset. Compres did not tell her that the Respondent had whispered to her anything about ejaculating all over her. She agreed that if that had been said, she would have recalled it.

Compres recalled that allegation but not from the Respondent. She agreed that there was an occasion when she and Compres agreed to meet the Respondent at a restaurant or bar. She thought this was in December 2006. She was still at the 42 Precinct at that time. The idea was that they would meet the Respondent and anyone else who was there at the time. She agreed it was not a date but a meeting place, a social gathering. She did not call to say that she would not be coming and did not know what Compres did about calling the Respondent. She agreed that after that, when she got a call from the Respondent, he was upset because no one showed. She said it was the kind of thing where you didn't have to call -- you either showed up or not. Morales recalled that the Respondent was upset that no one called.

She agreed that the Respondent did not say he was going to seek retribution, "not in so many words he didn't say it." She agreed that she left the 42 Precinct in February 2007 and that there was another call that occurred after that. During that call, the Respondent asked what was wrong with her friend (Compres), who he said seemed stressed out. The Respondent told her that Compres was acting weird and that he did not

know what was wrong with her. Morales did not know why the Respondent was calling her and did not feel he was asking her for guidance or assistance.

Morales testified that in January 2007, Compres had a marital issue and she came to work crying and very upset. The Respondent was the assistant ICO and she assumed that was how he became involved in the situation. She was not working at the precinct at the time and therefore did not know if Compres' performance at work deteriorated at that time.

Morales agreed that she had never personally heard the Respondent say anything sexually inappropriate to any female in the 42 Precinct and he never said anything inappropriate to her.

The conversation with Compres about the threesome occurred in February or March 2007, after she left the precinct. She was having no personal contact with the Respondent at that time. Morales agreed that in her time at the 42 Precinct, she never heard the Respondent sexually harass or say anything sexually inappropriate to anyone, including Compres.

She said she did not understand the Respondent asking them out for drinks, as they were married. She also said that every time he asked her out, he told her to bring her friend (Compres) so she was "sure" it had nothing to do with her and that it was all about Compres. Morales said she thought that the only way the Respondent could get Compres to go out was if she accompanied her. Morales agreed that the Respondent never said that. She also agreed that when she heard the Respondent invite Compres out, he would then invite "all of us." Morales then said there were times that the Respondent asked only Compres out but she did not know how many times that was. She said she never

heard the Respondent refer to himself as 'Larry Love' but he did call himself 'LL' "

Police Officer Clee Carter

Carter has been a member of the service for 17 years. She worked at the 41 Precinct before being assigned to the 42 Precinct at the end of 1996. She knows Compres and became friends with her. She was not sure if she worked in the School Unit with Compres. She described them as friends and they socialize outside of work. She also knows the Respondent as sergeant in the School Unit. She did not work with him. She said she did not really have a relationship with the Respondent.

In 2007, she had a conversation with Compres in which she said the Respondent was harassing her, bothering her and picking on her at the precinct. She believed this conversation occurred at Compres' house.

Compres also said that the Respondent was denying her days off from work. Carter said Compres claimed that the Respondent denied her the days off because 'he wanted some [sex] and he wasn't getting anything from her' "

Compres also told her about a time the Respondent wet her hair. Carter said she was working at the time but did not see it. She was sitting in the stationhouse, at the telephone switchboard. She did not see the incident but did see the aftermath. Compres she said complained that the Respondent wet her hair and Compres was upset because she had just gotten her hair done. Carter reiterated that Compres was very upset about her hair getting wet. She did not know if there was any discussion between the Respondent and Compres at that time.

On cross-examination, Carter said she believed there were a few other people in

the area at the time of the incident. She agreed this was a common place for people in the precinct to congregate. She agreed that the telephone switchboard area usually has people around it. The area is also near the desk and there is always a desk officer.

Carter's attention was drawn to the incident when Compres screamed that her hair got wet. Carter agreed that that was what she seemed to be upset about. Carter believed that Compres was in uniform but she was not sure. She did not see the Respondent approach Compres and whisper in her ear. Carter did not see any dripping water. The Respondent, she said, was a few feet from the water fountain. She never heard the Respondent say anything about ejaculating.

Carter did not recall if the conversation she had with Compres, in which she complained about the Respondent, was before or after the water incident but she thought it was after. Compres had complained that he was denying her E-days. Compres did not indicate specifically how she was being sexually harassed by the Respondent.

She believed the statement that he "wasn't getting any" was a general statement. She then said she believed it was specific to Compres.

Compres never told her about the Respondent saying they would have sex in his bed and not on the couch. Compres never told her the Respondent was pinching her. Compres never told her that during the water incident the Respondent made a comment about ejaculating. Nor did she say that the Respondent was always inviting her to his house to have sex.

Carter said that she is the EEO liaison in the 42 Precinct but she did not have that position at the time of her conversation with Compres. The parties agreed that the conversation was before August 1, 2007.

The Respondent's Case

The Respondent testified in his own behalf. The Respondent also called Sergeant Johnny Diaz and Police Administrative Aide Jaime Rodriguez as witnesses.

The Respondent

The Respondent has been a member of the Department for over 20 years. He is currently assigned to the 42 Precinct, where he has been since his promotion to sergeant in November 2004. Before that, from 1990 to 1995, he was a police officer at the 24 Precinct and then from 1995 to 2004 at the 25 Precinct. He has never had charges and specifications before this matter.

In 2004, when the Respondent arrived at the 42 Precinct, he was assigned squad B-2, which was a steady day tour. Compres was in his squad at that time. He worked with her from November 2004 to September 2005. During that time, she was his driver. He had asked her to drive him because she was a good worker. "She worked well. If I asked her to make an arrest or get activities she had no problem in doing so."

In September 2005, the Respondent said he became the School Sergeant and supervised the School Unit in the precinct. There were between six and ten officers in the unit. Compres became a member of that unit shortly after he went there. The Respondent said that she was assigned there because he had asked her if she wanted to join the School Unit. He indicated that one of the benefits of being in the School Unit was that it was a steady Monday to Friday assignment.

The Respondent described his relationship with Compres as "good." He added, "We were able to speak about anything. We joked around, just like joked around with all

the other officers " He insisted that there was no romantic relationship

The Respondent said he left the School Unit to become the precinct's assistant ICO His job then entailed a greater responsibility to make sure that officers were doing what they were supposed to do It was, he said, more disciplinary As assistant ICO, he did not have direct supervisory responsibilities for Compres Her supervisor at that time was Sergeant Wick He also said that his relationship with Compres was friendly

The Respondent was assistant ICO for about two months He did not like the job he was doing and went back to patrol on a steady day tour He believed that was in September 2006 In the meantime, Compres had had a problem with Wick and went back to patrol He did not recall if she was in his squad and she was not his driver, although he sometimes asked her to drive

In December 2006, he returned to the School Unit The new CO of the precinct had asked him to return to that assignment Compres was not there when he returned to the unit The Respondent said that he asked the CO for additional officers and he requested both Vega and Compres This was around the beginning of January 2007

Before that time, he had seen her off duty He said they were at precinct functions They had gone to an officer's baby shower He stressed that they went and left the event separately She had also come over to his apartment

Explaining the circumstances of her coming to his apartment the Respondent testified

There was a precinct function and she asked me if I wanted to attend, and I had said no After that precinct function, she actually called me about ten or eleven o'clock at night She asked if she can come over I said no problem, come on over

The Respondent testified that Compres came to his apartment and stayed about two hours, during which time they watched television and had a drink. There was no romantic atmosphere, he said, nor did he attempt to create one. He testified that he made no romantic gestures.

The Respondent said that Compres had been to his apartment on two occasions. The second time, he said, occurred sometime between January and June of 2007. He testified that she called him. She was, he said, upset about her relationship and what was going on with her marriage. She wanted to talk and she asked if she could come over. This occurred, he said, at about 9:00 p.m. The Respondent testified that again she stayed about two to two-and-a-half hours and that she had a drink. He said she was upset about her marriage. He said there were no sexual or romantic overtures.

The Respondent said he learned of the problems in her personal life in January 2007. This occurred when she came into the precinct crying. He said she wanted to speak with him. He brought her into the Youth Office where she said she had had an argument with her husband the night before and she left. In the morning she realized she had her husband's car keys and she wanted to take her own car to work. When she got back to the apartment she went to the bedroom and found her husband, who is also a police officer, in bed with his partner. The Respondent said this conversation had occurred the same day as the incident.

Describing Compres prior to January 2007, the Respondent stated, "She was a pleasant officer. She came in, did her work. Whatever I needed done, maybe additional summonses or if I needed her to do activity at a certain location or make an arrest, she had no problem doing so."

He said her productivity was fine and that she was a good officer. She had no problems taking orders. That changed, the Respondent testified, in January 2007 after she confronted him with what occurred in her apartment with her husband.

The Respondent said he had had a friendly relationship with Compres before January 2007 and he had been aware of marital problems she had before that date. She was leaving her husband, then getting back with him. She did not like the way her husband was treating her.

The Respondent said he brought her problems to the attention of Captain Bugge at that time. Compres was sent to the Department Surgeon to speak with a psychiatrist. As a result, her firearms were temporarily removed for non-disciplinary reasons.⁷ She remained in the School Unit. He said that after January 2007, Compres no longer wanted to work. He testified, "She always came in and said could I leave and I would tell her no because I needed her. Her productivity went down. She didn't get along with her fellow officers." These had not been issues before that time.

Describing the School Unit, the Respondent stated

All my officers, we would go in – the first thing we do in the morning is we joke around, on a friendly basis. Usually they would basically make fun of people, usually it was me. I was getting picked on by six of them. I was okay with that. You know, it was a pretty busy unit and I figured if that made them happy, I was okay with it.

At some point in time, he believed it was 2005, members of the 42 Precinct started calling him "Larry Love." He said one officer, Collazo, started calling him "Larry Love" and then the whole precinct was calling him that or "Sergeant Love." He said he later learned that this came from a YouTube song which was eventually played for him.

⁷ As per Patrol Guide Procedure 205-47, also referred to at trial as "I O 9."

so he understood where it came from The Respondent said he did not call himself

‘ Larry Love ’

Regarding Compres’ job performance after January 2007, the Respondent stated

She did not want to be at work She would tell me, I don’t want to be here, could I leave? Almost every day and I would tell her, no you have to work Or she’ll turn around and on her way into work, I’ll get a phone call, I need the day, so I’ll grant her an E-day which I had did [sic] on numerous occasions I didn’t ask her why I just figured she’s going through a lot of drama at home with her husband and I just granted her the day

The Respondent agreed that there was a time when he denied her time off and then learned that another supervisor had granted it This happened during the January to June 2007 period The Respondent said children were getting robbed and he needed his personnel for school dismissal time Compres asked him for lost time and he did not grant it He said he went off to do something and “the next thing you know, I come back and she’s in front of the desk already changed The desk sergeant, Diaz, had approved her lost time ” This had occurred without his permission The Respondent said this happened two or three times The majority of the time this happened, Diaz was involved

To prevent this from happening, the Respondent put up signs that said no excusal, no lost time, no E-days, without his authorization He referred to Compres by name in the signs He said he posted it in the Juvenile Room, which is where the School Unit turns out from, and behind the desk He said these were the only places he put the signs

As soon as Compres saw the sign in the Juvenile Room, he removed it but he left the one at the desk so the sergeants on the “4 to 12” tour would see it so she couldn’t bypass him that way The Respondent said he discussed what he was doing and why he was doing it with Compres The signs did not work and she continued to bypass him by

going to other sergeants. Then she requested a tour change. She said she needed to start at 8:30 a.m. due to child-care issues. He said he did not have a problem with that but she'd have to speak with the administrative lieutenant, Argunzoni. The Respondent said he did not have the power to make that decision. To his knowledge the tour change was never granted. He said he discussed the matter with Argunzoni and told him she needed the change for child-care issues. He never suggested to Argunzoni that the change should not be granted.

He was not sure how long it was after the tour change request but there was a day when she came in at 8:30 a.m. There had been a bomb threat at a high school and the principal evacuated the school. The Respondent had been waiting for Compres and Vega, both of whom were late. He asked them to hurry and they did not. He had to get to the scene so he put them both on a foot post.

He denied that this was in retaliation for her refusing to perform sexual favors. He agreed that he had heard Compres' testimony in which she claimed he asked for sexual favors and he said that it was not true. He said he never invited her to his house to perform sexual acts there. He denied saying that if she went to his house they would have sex on the bed and not on the couch. He denied that he suggested any form of threesome.

Explaining the water fountain incident the Respondent stated

I was on the desk and I went to get up to go to the water fountain to get a drink of water when Officer Compres was by the TS talking to other female officers. She had a water bottle on top of the desk. She grabbed the water bottle and sprayed me with water. It unusual but she had done it to me once before.

The Respondent said that she was laughing when she did this. He said that he

was at the water fountain and he cupped his hands and using his hands threw water from the water fountain at her. He denied spitting water. The water, he said, landed on her face and hair. Her reaction, he said, was that she just laughed and ran off. She did not say anything about her hair being wet. He denied whispering in her ear anything about ejaculating.

The Respondent did not bring her up on charges regarding the water incident because they were just joking around. He said that every morning, when the officers came in, they joked around about a person's appearance or how they were dressed. Usually he was the one being attacked but he said he didn't think anything of it because they got the job done.

Regarding the blackout on June 27, 2007, the Respondent stated

I was told by the Desk and the Captain that there was a blackout and all of the officers were ordered to stay at the command. I just finished an incident with the school crossing guard. I finished that, so I went to the front stoop and I observed Officer Compres exiting the rear of the station house in her regular clothes. I advised her that she is not allowed to leave because there was a blackout and all officers are being held. At that point she stated to me, "I don't care. I signed out already." I said, "Officer Compres you cannot leave." I told her three to four times she's not allowed to leave. At one point, she kept on telling me, "I don't care. I signed out." She started running from me.

The Respondent said she ran towards Third Avenue and 159 Street. Officers Alvarez and Angeles were outside in the vicinity and could have heard the conversation. The Respondent said he did not chase her and that he saw her get in her vehicle. He returned to the precinct and spoke to the Executive Officer, Captain Green, who said he would not suspend her and told him to write a command discipline. He said he completed the command discipline on June 27 and submitted it to the ICO. [Respondent

Exhibit (RX) C is a copy of a Supervisor's Complaint Report/Command Discipline Election Report prepared by the Respondent. It was noted at trial that there is no indication that the command discipline was adjudicated. The Respondent testified that he never told Compres that if she came to his house she could leave the command.

The Respondent was asked about testimony Compres gave where she said she had presented a UF-28 to him and he ripped it out of her hand. The Respondent denied that that ever happened. He was, he said, presented with UF-28s by Compres and he authorized 99% of them.

He was informed by the midnight platoon lieutenant that on the day after the blackout, Compres had requested an E-day and it had been denied. He explained that if she needed an E-day she should have called her supervisor, which was the Respondent. She did not do that and he learned about the request from the midnight lieutenant. When the lieutenant denied the E-day, the Respondent said, Compres went sick. He added

After that she was out sick for about a week she returns and I had patrol that day so as I was doing the roll call and inspecting the officers I observed she didn't have a shield on her - on her jacket - on her shirt. I mention to her after roll call that she didn't have a shield. Later on during the day she was told that I had written her a command discipline for the blackout incident and you now, that's when this whole idiocracy [sic] started.

This occurred about eight to ten days after the blackout. Regarding Compres going sick on the day after the blackout, the Respondent was shown a command discipline prepared by the Health Services Division Absence Control Unit which said Compres failed to call or report to her Medical District as required by the Patrol Guide (RX D). The Respondent was not aware that it had not been adjudicated and he did not know if Compres was ever presented with it. He did not prepare it or cause it to be prepared.

The Respondent was asked about the testimony Compres gave that he pinched her arm on a number of occasions leaving bruises. The Respondent denied that this occurred. He said that they may have shoved each other in the arm in a playful manner. He said that almost every day she was "playing around." He denied shoving her and leaving bruises and he denied pinching her.

The Respondent learned of Compres' allegations against him when he was ordered to go to the EEO office for an interview. Then, one day, after patrol, he was stopped by a man who identified himself as a reporter for the Daily News. The man asked if he knew that he had been found guilty in EEO and started snapping photos. The following day, his picture was in the newspaper.

The Respondent denied ever suggesting to Compres that she go to his house for sexual gratification. He denied making sexual comments to her in any manner whatsoever. He denied ever asking her - - they go out socially. He explained that what he meant by that was that on payday officers usually go out together. He has been invited and once in a while he has gone. The Respondent denied sexually harassing Compres. He denied ever retaliating against her for her alleged refusal to allow him to perform any type of sexual acts on her.

On cross-examination, the Respondent repeated that Compres had been to his residence on two occasions. She never went, he said, to discuss decorating. He said she was looking for an apartment and he did mention that he was on a waiting list for an apartment in the Mitchell-Lama program and she asked about that. He said he explained that Co-Op City had one such program and where he lived had one. That, he said, was the extent of that.

The Respondent agreed that when she visited his apartment, Compres was having marital difficulties and that she confided personal issues to him. He did not find this unusual. He did not discuss this with anyone at work. When asked if he invited anyone else to his apartment, he answered, "Officer Morales." When asked why he would invite Morales to his residence the Respondent stated

Because Officer Compres was speaking to her, having a conversation in front of me and was like, oh, yeah, I went over to Sergeant Lopez's house. He made me a nice drink. You need to come over and try it. I said whenever you guys want to come over, that would be fine.

The Respondent was not sure if Morales was under his direct supervision at the time but he agreed she was a subordinate female officer in his command. He also agreed that he invited two women to his residence. He did not discuss that with anyone other than those two officers. The Respondent also agreed that it was his testimony that Compres was not upset during the event that took place at the water fountain, and that she found the matter funny in some way.

The Respondent agreed that Compres' work performance declined after January 2007. He agreed he never took any action against her in connection with this performance decline. He did not set performance objectives for her but he did speak to her about her performance. He did not document any of these conferences. The Respondent said he spoke to her delegate, Vasquez, about the matter but it had no effect.

The Respondent stated that Compres didn't want to be at work after January 2007 and, at every chance she had, she wanted to take off. Her actual absenteeism was not excessive, he testified. The Respondent did not agree that her absenteeism was not interfering with her work, explaining, "Well, her not being there she wasn't there when I

needed her there ”

Explaining why he put up the signs, the Respondent testified

The reason was the day prior was, about three o'clock, 1300 hours the day before, we needed to cover dismissal at the school. We were having robbery and grand larceny problems and she asked me for lost time. I told her I cannot give her lost time. I need you there for dismissal. I turned around and went off somewhere in the station house and when I returned I saw her in the front of the desk in regular clothes. The desk officer at the time was Sergeant Diaz, which he granted her lost time. I said something to her. I was not going to get into an argument with her. I turned around and mentioned something to Sergeant Diaz. I said I denied her lost time. His response to me was he wasn't aware that I had denied her and he authorized it.

The Respondent agreed that he thought she had been “boss shopping” and he also agreed that he took no disciplinary action at that time, not even putting her in the minor violations log. Neither he nor Diaz gave her a command discipline and the Respondent agreed there was no record of the incident, other than a UF-28 signed by Diaz.

Going back to the signs, the Respondent agreed that he had not put out a sign like that regarding any other officer. He did so he said because he had spoken to Compres on numerous occasions and she continued to defy him, so he put up the signs. He agreed that after Compres saw the sign he removed the one he had posted in the Juvenile Room. No one told him to take them down. He also said he wanted Compres to see them and know what was going on. The Respondent denied that he was trying to embarrass her into compliance but that he was trying to get her to realize what she was doing wrong. Before putting up the signs, the Respondent had not consulted with the ICO, the administrative lieutenant, the executive officer or the CO.

The Respondent testified that he was not aware of Compres having received

permission for a change of tour. He noted that usually when the administrative lieutenant changes a tour, a tour change slip is filled out. Additionally roll call is notified and the change appears on the roll call.

Regarding the Respondent's testimony that he granted 99% of Compres' UF-28s, when asked why he would deny any particular UF-28, the Respondent stated, "If a roll call change [sheet] said no excusals, then there's no excusals. I cannot turn around and grant that. The commanding officer or the duty captain has to do that."

The Respondent denied ever pinching Compres while she was his driver. He denied ever pinching her on the thigh. He denied ever having a conversation with her of a sexual nature. He denied having any arguments (other than minor disagreements) with her. He agreed that it was his testimony that Compres considered him a friend and a confidant who would go over and speak to him in his apartment.

On re-direct examination, the Respondent indicated that the sign that he made was posted at the front desk for one tour. The Respondents said he wanted the officers on the '4 to 12' tour to see it and thus, if he was out on patrol, they would know if Compres came in to ask for lost time. It was no secret that this was posted. Neither the CO, the administrative lieutenant nor anyone else questioned him about it. The Respondent also indicated that he discussed Compres' work performance with the CO. He said

I went inside and I spoke to the CO at that time. I explained her behavior and how none of the officers wanted to work with her. She didn't want to work. She didn't want to be there. She didn't want to be a police officer anymore. She wanted to go to another job. She was a very difficult person to deal with and again, I didn't want to deal with her and neither did my officers.

The Respondent also went to her PBA representative, Vasquez. He did not recall

a conversation with Morales where he reached out to her, as she had testified. He was aware that Compres and Morales were close friends. He said he did not issue a command discipline for "boss shopping" because "normally that is not done, you speak to an officer and that's it." He said he did not post the sign in the Muster Room or the 124 Room. Explaining why Compres would have known that she was not granted the change of tour, he noted that she would have had to fill out a change of tour slip and turn it into the administrative lieutenant, who in turn would have to notify roll call. It would have been indicated in the roll call log and on the roll call change sheets. None of these notations were made on the day she came in late.

On questioning by the Court, the Respondent agreed that he had a good relationship with Compres up until January 2007 and that deteriorated slowly. He said that she tried to work it out with her husband. He said she went back to live with him then found him in bed with another woman, "so her behavior just kept on constantly changing." The water fountain incident happened, he said, within that January to June time period. He said it was closer to the beginning of that timeline because they were still talking and joking around. The incident with the sign probably occurred in May. He denied that he asked her out ten times and he denied ever asking her out romantically.

Sergeant Johnny Diaz

Diaz has been a member of the Department for 13 years. He is assigned to the 42 Precinct, where he has worked for approximately four years. Diaz stated that he was familiar with the Respondent, who was also assigned to the 42 Precinct in January 2007. Diaz was also familiar with Compres, who was performing duties as the youth officer in

the 42 Precinct during January 2007. Compres was a subordinate of Diaz, however she was not under the direct supervision of Diaz.

Diaz explained that a Leave of Absence Report is prepared to request a day off, vacation, and to account for a period of time during which a member is either late or leaves early. Diaz affirmed that UF-28s are signed by supervisors. Diaz indicated that sergeants usually perform the duties of the desk officer, and desk officers typically sign UF-28s. Diaz further indicated that no protocol exists that would limit only a direct supervisor to sign an officer's UF-28. After indicating that any supervisor can sign a UF-28, Diaz admitted that no protocol exists directing an officer to seek the signature or the approval of a particular supervisor. Diaz explained that a supervisor would not usually overrule the disapproval of a UF-28 by another supervisor.

While directing his attention to the early part of 2007, Diaz recalled that Compres asked him to sign UF-28s on two or three occasions. Diaz acknowledged that at some point after signing one of these UF-28s for Compres, he became aware that Compres' request was previously denied by the Respondent. Diaz recalled assuming duties as the third platoon desk officer when he was approached by Compres, who asked if she could leave an hour or two early. Compres prepared a UF-28 which Diaz signed to approve Compres' early departure from work. Diaz testified that Compres did not inform him that her request was previously made to another supervisor. Diaz indicated that it is neither normal for officers to volunteer such information nor for supervisors to request such information. When asked to approve a UF-28 the first time, Diaz presumes that no other supervisor has denied the UF-28.

Diaz affirmed that he approved Compres' UF-28 and later learned that the

Respondent had earlier denied that UF-28 Diaz was approached by the Respondent, who asked if Diaz had given Compres lost time Diaz recalled that the Respondent informed him that he had denied that request Diaz did not recall if this conversation took place 15 or 20 minutes after approving the lost time, but he did recall it being the same day

Diaz testified that he started work at the desk at 3 p m and was approached by Compres at that time According to Diaz, Compres asked him to sign a UF-28 for lost time Diaz was unable to recall the exact time that Compres was to end her scheduled tour, but he did recall that she wanted lost time commencing at 3 p m and ending at her end of tour Diaz indicated that Compres was seeking his permission to leave the command Diaz admitted that he approved the "28" without knowing that it had already been denied Diaz testified that he was not aware that the Respondent denied Compres' request for the UF-28 prior to Compres departing the command

After Compres had left the command, Diaz was approached by the Respondent The Respondent engaged Diaz in a conversation during which Diaz admitted to the Respondent that he signed the UF-28 Unable to recall the Respondent's exact words, Diaz indicated that the Respondent informed him that he had already denied Compres Diaz apologized to the Respondent and stated that had he known that Compres had been denied already, he would not have signed her request

Diaz recalled that at some point after this incident, he noticed a sign posted by the Respondent which indicated that no other supervisor was authorized to sign UF-28s on behalf of Compres Diaz noted that he recalled seeing this sign posted after his conversation with the Respondent but was unable to recall the length of time during which the sign was posted Diaz did not remember signing any UF-28s for Compres after

that day Diaz did not recall signing a UF-28 for Compres after this particular UF-28 which the Respondent claimed to have denied

Diaz was assigned to the 42 Precinct on two separate occasions. The first time Diaz was assigned to the 42 Precinct was in November 2004, and then again in January of 2007. In total, Diaz worked approximately six years in the 42 Precinct. The Respondent was assigned to the 42 Precinct at that time as a supervisor as well. Diaz never heard the Respondent refer to himself as "Larry Love." Diaz heard the ramblings of other people who were saying things after details came out in the media pertaining to this case. Diaz indicated that he was aware that there was a newspaper article which referred to the Respondent as "Larry Love." Diaz never heard the Respondent referred to as "Larry Love" prior to the newspaper article. According to Diaz, it is fair to say that he never heard the Respondent refer to himself as "Larry Love."

During the past several years, Diaz has signed approximately five to ten UF-28s per week. Diaz admitted that he was never officially interviewed by the Department regarding this matter. Diaz did not review any records regarding Compres and "28's" prior to this testimony. Diaz was able to recall a conversation from early 2007 because he recalled working with Compres and a time when she asked him to approve a UD-28. Diaz recalled the conversation with the Respondent, during which he (Diaz) discovered that he had approved a request for lost time that had been previously denied by the Respondent.

Diaz first learned that he would be called as a witness in the case approximately two or three months ago. Diaz admitted that the Respondent asked him to be a witness in this case with regards to UF-28s that had been signed for Compres. Diaz testified that the

Respondent did not draw his attention to any specific UF-28s that had been signed on behalf of Compres. Diaz indicated that the Respondent informed him that he would testify about a UF-28. Although the exact date of the UF-28 was not recalled, it was discussed that the case involved a time when Compres had "boss shopped" for a supervisor to approve a UF-28 which had been previously disapproved by another supervisor. The Respondent did not provide Diaz with a copy of the UF-28 in question.

Diaz admitted that he spoke with the attorney representing the Respondent approximately an hour before he was scheduled to testify regarding this matter. The conversation took place outside of the courtroom. During his conversation with the Respondent's attorney, Diaz was informed of what questions he would be asked. Diaz admitted that he was not thinking about the incident until he had a conversation with the Respondent. After he had the conversation with the Respondent, Diaz remembered one or two instances when he signed UF-28s for Compres. Diaz conceded that it was fair to say that his conversation with the Respondent helped him to remember the details of the incident. Diaz said that his conversation with the Respondent only lasted approximately five minutes. According to Diaz, he and the Respondent did not speak regarding the details of the case since their initial conversation approximately two or three months prior. The Respondent did remind Diaz of the court date in November in case he had any vacation plans.

Recalling that day in early 2007 when the alleged "boss shopping" occurred, Diaz testified that the Respondent did not give him a UF-28 for Compres which had been disapproved. Without any documentation of the disapproved UF-28, Diaz had to rely upon the Respondent's word. Diaz characterized his interaction with Compres as being

limited to 'hi and bye " Diaz was assigned to work a '4 to 12" shift, and Compres worked a day shift, which caused their tours to overlap for only a few hours on occasions when Compres was processing an arrest

Diaz indicated he first became aware of the allegations Compres made against the Respondent when it was noted in the media by means of newspaper articles Prior to the media reports about the allegations made by Compres against the Respondent, Diaz had no information about the allegations Diaz affirmed that he had interactions with the Respondent prior to the media reports Although Diaz and the Respondent did not usually associate outside of work, Diaz characterized his relationship with the Respondent as friendly Diaz conceded that even before the media reports, the Respondent had a reputation as jokingly being a ladies' man Diaz also conceded that whether rumor, fact, or just stuff that was made up, the Respondent had a reputation of being a ladies' man This was something Diaz did not take seriously Diaz did not recall who specifically talked about the Respondent in such a manner, but acknowledged that there were rumors Diaz noted that he never heard the Respondent referred to as "Larry Love" before he was given the name by the media Diaz never heard the Respondent refer to himself as "Larry Love " Diaz acknowledged that the Respondent's initials are LL Diaz once again affirmed that he heard the Respondent called ' Larry Love" only after the media reports

Diaz affirmed that after the incident involving the UF-28, there was a sign posted by the Respondent at the desk Diaz recalled that there was one sign posted right by the command log at the desk Diaz acknowledged that the sign mentioned Compres by name Diaz had never seen such a sign mentioning any other police officer before Diaz

never inquired as to whose authority the Respondent posted the sign. Diaz seemed to indicate that authority rested with the Respondent as Compres' immediate supervisor.

Diaz agreed that it is fair to say that he signed UF-28s for other members of the 42 Precinct who were not under his direct supervision. Diaz acknowledged that he signed UF-28s for members who were under the direct supervision of the Respondent other than Compres. Diaz explained that when someone asks him to authorize a UF-28, usually a verbal answer is given. Diaz agreed that if someone approached him and requested that he sign a UF-28 for two hours of lost time and he decided to deny the request, verbally stating no would be the end of the interaction.

Diaz affirmed that he was asserting, under oath, that he recalled the incident in which the Respondent had told him that he had previously denied Compres' leave request after he, Diaz, had granted it. Diaz reaffirmed that he signed about five to ten UF-28s per week. Diaz could not recall another time in his career when he was approached by another supervisor who informed him that he approved a UF-28 for a member that was previously denied by another supervisor. Diaz agreed that the unusual nature of this incident was what caused him to remember the events in question.

Police Administrative Aide Jaime Rodriguez

Rodriguez has been assigned to the 48 Precinct for approximately one year. During a six-month period of time beginning in January 2007 and ending in June 2007, Rodriguez was assigned to the 42 Precinct as a Work Experience Program (WEP) worker. Rodriguez affirmed that she was familiar with the Respondent. While assigned to the 42 Precinct, Rodriguez was assigned to the School Unit to assist the Respondent.

with paperwork Rodriguez also affirmed that she knew Compres, who, likewise, worked in the School Unit

While assigned to the 42 Precinct, Rodriguez performed her duties inside the School Office Rodriguez admitted that she had occasion to be in the vicinity of the desk when she had to use the bathroom, go to the water fountain, and bring paperwork to other places Rodriguez recalled an incident in 2007 which involved the Respondent, Compres, and some water Rodriguez indicated that she was engaged in a conversation with a group of people near the water fountain Although Rodriguez could not recall the subject of the conversation, she did recall that Compres spit water on the Respondent. According to Rodriguez, the Respondent possessed a water bottle and splashed water on Compres Rodriguez testified that those present were laughing Rodriguez indicated that after the water splashing and laughter, the Respondent told those present that fun time was over and that it was time to get back to work Without being able to recall all who were present, Rodriguez indicated that she was present with the Respondent, Compres, and Police Administrative Aide Gonzalez Rodriguez said there were also a couple of uniformed officers present, but she could not recall their identities

Rodriguez described that she was in front of the water fountain with the Respondent and Compres to the left Rodriguez described the water fountain as being a regular water fountain which is attached to the wall According to Rodriguez, Compres and the Respondent were standing in such a way that they were facing each other Compres was leaning towards the water fountain The other people were standing around, and Rodriguez was standing behind the Respondent Rodriguez recalled seeing Compres with the water first because she saw Compres spit water from her mouth at the

Respondent Rodriguez assumed that Compres got the water from the water fountain because Compres was standing adjacent to the water fountain with the mouthful of water that she would eventually spit Rodriguez admitted that she never saw officers engaged in activities such as throwing or spitting water before this incident Rodriguez described that she was approximately eight to ten feet from the Respondent and Compres at the time of the incident Rodriguez testified that she had a clear and unobstructed view of Compres as Compres spit the water at the Respondent Rodriguez indicated that she did not recall Compres saying anything after spitting the water

According to Rodriguez, the Respondent had a bottle of water with which he splashed water onto Compres' shirt Rodriguez indicated that Compres reacted by laughing Rodriguez acknowledged that the Respondent and all of those present were laughing Rodriguez stated that she was close enough to hear any conversation between the Respondent and Compres Rodriguez did not recall hearing any conversation between the Respondent and Compres immediately following the water incident Rodriguez did not hear the Respondent make any inappropriate sexual comments Rodriguez did not hear the Respondent verbally reference either ejaculation, or male ejaculation Rodriguez did not recall the Respondent making any inappropriate or sexual reference towards Compres while they were near the water fountain Rodriguez admitted that the noise generated by the group adjacent to the water fountain was getting too loud The Respondent told the group to quiet down and to return to their work

Rodriguez had occasion to interact and converse with Compres during the six months Rodriguez was assigned to the 42 Precinct Rodriguez characterized Compres as being preoccupied to the point that Compres appeared to have difficulty focusing on any

one task. According to Rodriguez, Compres discussed topics that were personal in nature. During the discussions, Compres disclosed information related to issues in Compres' marriage. Compres did not limit topics of discussion to marital problems, but also spoke about her children. According to Rodriguez, Compres and Rodriguez were able to relate because they both had children. Rodriguez observed that Compres had a tendency to be tardy at least once or twice a week. Rodriguez explained that Compres tardiness could have consisted of a period of time from a few minutes to a period of time greater than 20 minutes.

Rodriguez affirmed that she came to know the Respondent while assigned to the 42 Precinct. Rodriguez testified that at no time between the months of January 2007 and June 2007 did she hear the Respondent refer to himself as "Larry Love." Rodriguez heard the Respondent neither make an inappropriate comment towards any female in the precinct nor towards Compres.

Rodriguez's assignment at the 42 Precinct was limited to a six-month period of time that correlated to her school schedule and participation in WEP. Rodriguez got a job after leaving the 42 Precinct. Rodriguez admitted that she returned to the Police Department for employment because a city job provides good benefits. Rodriguez denied receiving any assistance, guidance, or advice from the Respondent regarding employment with the Department.

Rodriguez characterized her relationship with the Respondent in terms of the Respondent being her supervisor. Despite the Respondent's supervisory role, he was neither required to sign Rodriguez's requests for time off, nor prepare any paperwork in connection with Rodriguez's participation in WEP. Rodriguez explained that the

Respondent would assign Rodriguez to perform various duties around the office such as making phone calls, maintaining log books, and processing reports involving juveniles. Rodriguez denied socializing with the Respondent after work. Rodriguez denied both going to lunch with the Respondent, and picking lunch up for the Respondent.

Rodriguez acknowledged that she was friendly with Police Administrative Aide Gonzalez, Police Officer Stava, Police Officer Danclar, and Police Officer Vega while assigned to the 42 Precinct. Rodriguez both denied riding in cars with the officers, and going on patrol with the officers.

While assigned to the 42 Precinct, Rodriguez was scheduled to work from 8 00 a.m. to 2 00 p.m. three days per week. Rodriguez stated that she usually arrived at the precinct at approximately 7 45 a.m. Despite the fact that Rodriguez worked only three days per week, Rodriguez observed that Compres frequently reported late for work. Rodriguez conceded that she did not recall the exact time at which Compres was scheduled to commence her shift. Rodriguez did recall that the rest of the members of the School Unit would be in uniform and ready to set out for their assignments, but one of the officers would usually remain behind to wait for Compres. Rodriguez explained that one of the officers assigned to the unit would wait for Compres to put on a uniform and leave for their assignment after the others had already left for patrol. Rodriguez observed Compres' tardiness throughout the six months that Rodriguez was assigned to the 42 Precinct. Rodriguez did note that the problem of Compres' tardiness was not too bad at first but became worse as the months progressed.

Rodriguez first learned of her scheduled appearance to testify regarding this matter when she was notified by her command on Monday, November 8, 2010.

Rodriguez also admitted that the Respondent had asked her to testify regarding this matter many months ago. The Respondent did not tell Rodriguez what she would be testifying about. Rodriguez admitted that she first learned of the nature of her testimony during a phone conversation with the Respondent's attorney, Andrew Quinn, Esq. Rodriguez indicated that her phone conversation with Quinn had taken place two months prior to the date on which she was to testify. Rodriguez stated that she was never shown any documents or records regarding this case. Rodriguez spoke with Quinn only briefly on the phone and admitted that her testimony was based upon independent memory. Prior to appearing to testify, Rodriguez did not discuss the content of her testimony with the Respondent. Rodriguez did not travel along with the Respondent to the courtroom to provide this testimony. Rodriguez acknowledged sitting outside of the courtroom with the Respondent prior to testifying. Rodriguez stated that she did not discuss her testimony with the Respondent.

Rodriguez first learned of Compres' allegations against the Respondent when she read a newspaper article in the Daily News. Prior to reading the article in the Daily News, Rodriguez had no knowledge of any allegations against the Respondent. Rodriguez did not recall the Respondent having a reputation as a ladies' man. Rodriguez never heard anyone say anything that would lead her to believe that the Respondent had a reputation as a lothario. Rodriguez acknowledged that the first time she heard of the Respondent having a reputation of being a lothario was when the allegations became public knowledge.

Rodriguez clarified that Compres did not complain about her hair being wet in the moments after the incident adjacent to the water fountain. Rodriguez could not recall if

Compres had recently had her hair done at that time. Rodriguez acknowledged that she knew Carter. Rodriguez could not recall if Carter was one of the uniformed officers standing around the water fountain at the time of the water incident. Rodriguez did not recall seeing signs posted in the precinct concerning the approval or denial of UF-28s for Compres. Rodriguez clarified that water was only splashed on the front of Compres' shirt during the incident by the water fountain.

FINDINGS AND ANALYSIS

The Department and the Respondent present two very different versions of events regarding the conduct charged in Specification No 1, which alleges that the Respondent "engaged in a pattern or course of sexual harassment of a female member of the service under his supervision, including sexual propositions, discourteous or disrespectful sexual remarks, inappropriate touching, and spitting of water at said individual, having the effect of unreasonably interfering with said individual's work performance or creating an intimidating, hostile, or offensive work environment." In spite of these large differences there are some points of agreement that provide a good starting point for an analysis of the evidence in this hotly contested and difficult case. The key point of agreement is that both the Respondent and Compres agree that prior to January 2007 they enjoyed a congenial and professional relationship. Compres said she was assigned to the 42 Precinct in January 2003 and was assigned to patrol squad B-2. The Respondent indicated that he got promoted to sergeant and was assigned to the 42 Precinct in November 2004, whereupon he became the squad sergeant of B-2. That is apparently when they met.

The Respondent described Compres as a good worker and she indicated that there were no problems at that time. The Respondent said he went to the School Unit in September 2005 and that he had requested Compres be assigned there. Shortly after that, the Respondent left the School Unit to become assistant ICO. After a few months, he left that position and went back to patrol. In December 2006, he returned to the School Unit. Compres was no longer there and he requested that she be reassigned to that unit. Sometime in January 2007, that reassignment occurred and the present problems began.

There are no allegations of misconduct that pre-date January 2007. In that time period prior to January 2007, Compres visited the Respondent at his home. This is significant because the entire allegation of harassment involves a claim that the Respondent tried to lure Compres to his home.

The Respondent stated that Compres visited on two occasions, Compres said she only visited once. In any event, the visit was peaceful and proper and there are no complaints attached to that visit or visits.

The essence of Compres' claim is that after January 2007, the Respondent regularly and repeatedly tried to get her to go his apartment for the purpose of engaging in sexual activity. These importunings were accompanied by the Respondent pinching Compres, which left bruises. Although she did not specifically mention scratching, Compres did complain about the Respondent's nails, leading to the conclusion that she was complaining about scratching as well.

Obviously at some point, apparently after January 2007, something changed in what had hitherto been a good working relationship. What it was, and what the relationship became, are at the bottom of this case.

Before exploring that issue it is perhaps best to try to piece together several of the specific incidents that occurred between the Respondent and Compres during the period of January to July 2007

The first of these could be dubbed the water fountain incident. Although there is no date for this event, there is testimony from Compres, Rodriguez and the Respondent that they were present at the water fountain and they confirm that something did occur. Two other witnesses, Morales and Carter, also gave testimony on this subject. They did not witness the incident but reported on Compres' reaction. The problem is that each version is different and thus the question is what actually happened?

There seems to be no question that the water fountain is in a public area of the precinct and that other people were around when the incident occurred.

Compres said the Respondent, without provocation, spit water at her, wetting her shirt and hair. He then, either by whispering or speaking in a low voice, said something analogizing the spray of water to his ejaculating on her during a sexual encounter.

Morales was not present for and did not witness the scene at the water fountain but testified that Compres called her upset about the incident. In that conversation, Compres did not say anything about the alleged "ejaculation" comment.

Carter was on duty at the telephone switchboard. She did not see the incident either, but did see Compres afterwards. She recalled that Compres was upset that her hair had gotten wet after she had just had it done. She said her attention was drawn to the incident after the fact, when she heard the Respondent scream about her hair getting wet.

The Respondent said that he was at the water fountain when Compres took a water bottle and sprayed him with it. He said this was unusual behavior but not the first

time that Compres had done that. He said that the incident occurred early in the year before their relationship had deteriorated and during a time when they were still able to fool around. The Respondent stated that he did not spit water at her but using cupped hands he took water from the water fountain and splashed it toward Compres as a response to her action. He said he got her shirt and hair wet and that she left the area laughing. He denied making any inappropriate comment to Compres.

Rodriguez testified that she was in the water fountain area when the incident occurred and she had a clear view of both the Respondent and Compres. Her recollection of the incident was that Compres spit water at the Respondent and that the Respondent then took a water bottle and used it to splash Compres with water, wetting her shirt. Rodriguez recalled that Compres, the Respondent and everyone there was laughing about the incident. It was basically a joke. She said after the incident the Respondent told everyone to get back to work. She did not hear the Respondent make any inappropriate comment to Compres and specifically did not hear any comment about ejaculation.

Looking at these varying testimonies it is clear that there is a difficulty in establishing the facts because nothing was recorded or noted at the time and consequently everyone is referencing back to some unspecific date in the past.

This lack of contemporaneous recording presents a problem throughout the Department's case. For instance, Compres claimed that the Respondent "constantly" pinched her on the arm bruising her, so much so that it was noticed at home, yet there are no photographs or medical records to document these alleged events. Similarly, she claimed that on occasion there were bruises on her buttocks and possibly scratches from the Respondent's long nails. Again there is no independent corroboration or

contemporaneous record of these alleged injuries

The comment the Respondent allegedly made to Compres during the water fountain incident is so vile it should have prompted some contemporaneous recording yet there is none. Even Compres' two friends, Morales and Carter, who spoke to her after the incident, can recall nothing of her making a complaint about such a statement.⁸ The only reasonable conclusion that can be drawn from this is that no such statement was made by the Respondent and the claim that he made it is a fabrication that was created sometime after the event, indeed after Compres spoke with Carter and Morales.

Morales and Carter do recall that she was upset about her hair being wet and clearly at some point after the incident Compres was upset about that. But Rodriguez, who seems to have no ties to either the Respondent or Compres, recalls that she was not upset about her hair immediately after the incident.

Considering all the testimony, it seems reasonable to conclude that Compres' anger about her hair getting wet was not part of her initial reaction but occurred at some point later when she realized her hair was wet or that her hairdo had been damaged.

Looking carefully at Compres' other claims a pattern emerges which raises questions about her reliability and truthfulness.

Both the Respondent and Morales recalled that there had been a time when Compres had been the Respondent's regular driver. Compres agreed that she drove the Respondent but could not recall being his regular driver and only, more or less admitted to that fact after much questioning.

There was also a lack of candor in her testimony about a previous referral to the

⁸ Compres' testimony that Carter actually witnessed the incident and after hearing the Respondent vulgar statement said to Compres 'Wow, that is nasty, aren't you going to do something about that?' is contradicted and belied by Carter's testimony that she did not witness the incident or hear such a statement.

[REDACTED] Unit While Compres agreed that that referral had resulted in her being placed on restricted duty, she blamed the problem of the stresses of this case. It was only when pressed on further examination that she conceded that that referral had occurred "years before" 2007 and in fact had occurred in 2005 or 2006. Further, she conceded that the underlying problem was her troubled marriage. It is worth noting that, in his testimony, the Respondent claimed that he was the person who referred her to the [REDACTED] Unit.

More significant, both in its relation to the specifications in this case and to her credibility generally, is Compres' testimony regarding her Leave of Absence Reports (UF-28s). Compres testified that she did not recall if other sergeants signed UF-28s for her. She did not recall taking any emergency leave days (E-days) between February and July 2007 and she denied that she went to Diaz after the Respondent refused to grant her a day off. She stated that she did not go "boss shopping." A review of Department records indicates that Compres filed 25 UF-28s in the period of January 15 to June 15, 2007, involving 25 tours.⁹ Of these, at least three were for E-days in the period from February to June 2007. At least seven of these were approved by her supervisor, the Respondent, while at least another eight were signed by other sergeants. Several were approved by at least one or more lieutenants. Unfortunately, a number of others were illegible so the approving officer could not be determined.

What these records show is that there were a number of times when Compres needed time or days off in this period. The records confirm that there were a number of latenesses. They also demonstrate that her testimony about not taking E-days and not

⁹ Compres' Leave of Absence Reports are in evidence (RX E). The Respondent offered a summary of the Leave of Absence Reports (RX F), however the Court based its conclusions on its own review of the Leave of Absence Reports and not on the Respondent's summary, which is slightly different.

going to other sergeants to have her UF-28s signed was simply not correct. The records also give credence to the Respondent's claim that he could not rely on her to be present and available for work.

Additionally, there is Diaz' testimony, which this Court found credible. Diaz recalled the Respondent coming over to him after he (Diaz) had approved a UF-28 for Compres, and complaining that she had gone to Diaz after he (the Respondent) had denied her request. While not direct proof of the allegation by the Respondent that she went to Diaz after his denial, Diaz' testimony certainly is some evidence that that is what occurred.

This brings us to the last major incident that Compres complained about. This is an event that allegedly occurred on a day when there was a blackout. Compres said that she was leaving the precinct at the end of her tour when the Respondent came running after her to tell her that the tour had been held over. She claimed that the Respondent upset her by calling her by her first name and by telling her that he would pretend he did not see her if she went to his house. As a result, she refused to go back to the precinct in spite of the fact that she knew the tour was held over.

The Respondent agreed that an incident occurred that day. He said that as a result of the blackout he learned from the desk officer and the captain that all officers were being ordered to remain at the command. He said at some point he went to the front stoop of the precinct and saw Compres, in civilian clothes, exit rear of the stationhouse. He said he told her she could not leave and she said she did not care, she was already signed out and she ran to her car. He denied making any improper statements to her.

Of course this, like all of the other incidents that form the basis of Compres'

complaint against the Respondent, involves a one-on-one situation

In attempting to determine what occurred on the day of the blackout, this Court can only use the information it has available. As with the other instances of alleged inappropriate sexual advances by the Respondent, there is no evidence of any immediate outcry. The Respondent testified that after the blackout he was told that they were being held over. It seems to this Court that this should have been pretty well known in the precinct. Moreover, even if Compres had not directly heard of the order holding officers over, the situation of the blackout itself and the potential need for more police presence in the darkened city should have been self-evident and should have alerted her to the fact that her services were needed.

The Respondent describes a situation in which Compres was basically sneaking out of the precinct to avoid being held over. The claim of sexual harassment, particularly given Compres' other credibility issues, seems like nothing more than an excuse for not coming back to work on the extended tour.

In coming to a determination in this case, some specific analysis of Morales' testimony is necessary. While Morales and Compres met as co-workers, they are clearly friends who communicate with each other and socialize off the job. Morales' testimony was certainly offered for the purpose of supporting Compres' claims. In the end, as will be seen, Morales' testimony really does not corroborate the allegations made by Compres of sexual harassment and in some respects undermines Compres' credibility.

To begin with, most of what Morales testified to involve reports of what the Respondent told her. This is, of course, hearsay. As noted earlier, this effort to bolster Compres' testimony backfired in the matter of the alleged inappropriate sexual comment

made by the Respondent to Compres at the water fountain

Morales does, however, report that Compres complained to her that the Respondent was constantly asking her out. Interestingly enough, Morales did not mention anything about the alleged pinching or bruising Compres testified to. Additionally, Morales does not mention that these were sexual entreaties. When asked by the Assistant Department Advocate to describe what Compres had told her Morales testified, 'Basically, she had said that he invited her a couple of times to the house and then when I got back [to work after being on maternity leave] then he kind of tried to invite both of us to go to his house.' When asked how that happened, Morales responded, "Just asking, you know, oh, you guys want to hang out one day? We could go out, have a couple of drinks and hang out."

It must be kept in mind that on cross-examination, Morales conceded that she never personally heard the Respondent say anything sexually inappropriate to any female in the precinct and that he never said anything inappropriate to her. Everything that Morales testified about needs to be considered in light of that statement. Thus, when Morales says that the Respondent asked them to "hang out," any assumption that this is a sexual overture to Compres is based on some conclusion Morales has made. Similarly, when Morales testified that the Respondent asked her along to his apartment or to otherwise hang out, it was really to get Compres to go, is a conclusion. It is also a conclusion she did not really explain. Further, any implication based on what Morales heard that the Respondent was trying to seduce Compres was another unexplained conclusion. Indeed the history between the Respondent and Compres was that they did hang out at the Respondent's apartment at least once, and possibly twice, without any

untoward incident

Similarly, Morales' statement that the Respondent threatened to get back at Compres regarding an incident where she claimed she and Compres had agreed to meet the Respondent somewhere and failed to show up, is based on Morales' interpretation of what the Respondent said and how he meant it

Lastly, Morales also claimed to hear the Respondent say something to Compres to the effect of, "I know you want some of LL." In light of her statement that she never heard the Respondent make an inappropriate sexual comment to anyone, the implication that this was sexual in nature is, at best, conjecture. In fact, Morales never said that it was a sexual comment. Moreover, Morales describes Compres as simply laughing the statement off, which would further indicate that, if such a statement were made, it was not some act of sexual harassment but had some more benign meaning.

It appears that neither Morales nor Compres reported the alleged sexual harassment, as they should have, to the Office of Equal Employment Opportunity and/or IAB. As a result, investigative techniques that could have been employed were not. For instance, given the claim that the Respondent was constantly pestering Compres to go to his apartment to have sex, a telephone call or other conversation could easily have been recorded to provide substantial independent proof of Compres' claim. This lack of reporting, along with the lack of easily obtained evidence, further weighs on the credibility of Compres' claims.

There was an attempt to paint the Respondent in this case as a lothario who went around referring to himself as "Larry Love" or "LL" in an effort to seduce women. There is no specific charge related to this alleged conduct but, if true, it would have provided

some corroboration for the notion that the Respondent made inappropriate comments to Compres. Frankly, the whole effort in this regard can be described as nothing more than a “red herring.”

The testimony in this trial is clear. Beside Compres, no one testified that they ever heard the Respondent make any inappropriate sexual comments to anyone. The Respondent testified that he did not refer to himself as “Larry Love.” He did say that some people referred to him as “Larry Love” after a song of that name was posted on YouTube.¹⁰

As to “LL,” those are in fact the Respondent’s initials. Further, although the Department had it within its power to interview every female employee, both uniform and civilian, who ever worked with the Respondent, it failed to provide a single employee who was subject to or witnessed the Respondent make an inappropriate sexual comment to anyone.

The Respondent’s version of what occurred after January 2007 was that Compres’ performance steadily deteriorated due to her stresses from her marital situation. He also indicated that their relationship deteriorated as he tried to get her to perform her job. Rodriguez, who, as this Court previously noted, seemed to be a neutral and credible witness, testified that Compres was “preoccupied” and basically distracted because of her personal situation. She said Compres was often late for work. Compres’ friend, Morales recalled that Compres had personal problems and had come to work crying at least once.

Considering all of the evidence, this Court finds the Respondent’s testimony about the relationship between himself and Compres to be credible. It finds insufficient basis to believe Compres’ claims that the Respondent engaged in a pattern or course of

¹⁰ The fact that there is a song called Larry Love can easily be confirmed on the internet.

sexual harassment" and therefore finds the Respondent Not Guilty of Specification No 1

Specification No 2 alleges that the Respondent "wrongfully retaliated against a female member of the service under his supervision, to wit, having had his sexual propositions or advances rejected by said individual, wrongfully posted a sign inside the 42nd Precinct stationhouse which directed other supervisors not to issue any excusals or approve any leave requests for said individual without said Sergeant's permission "

As noted previously, there is inadequate credible evidence to sustain the charge that the Respondent made "sexual propositions or advances" to Compres, consequently the Respondent could not have acted in retaliation for her "rejecting" those advances. Additionally there is ample evidence that the Respondent was, in fact, having difficulty keeping Compres to her work schedule and that she had regularly requested time off. There is also ample evidence that she often went to other sergeants and lieutenants to obtain authorization for those alterations to her work assignment. Additionally, Diaz recalled that the Respondent complained that Compres had gone to him (Diaz) for approval of a leave request after the Respondent had denied it, which was the specific event that caused the Respondent to post the signs. Whether posting the signs was an appropriate supervisory action is not an issue before this Court.

For all of these reasons the Respondent is found Not Guilty of Specification No 2 as charged.

Respectfully submitted,

APPROVED
JUL 11 2011
[Signature]
RAYMOND W. KELLY
POLICE COMMISSIONER

[Signature]
Martin G. Karopkin
Deputy Commissioner - Trials